



Bill Number: S.B. 1254

Mesnard Floor Amendment

Reference to: printed bill

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

1. Exempts any deed or conveyance of real property that is submitted for recording by a licensed title insurer, title insurance agent or escrow agent from:
 - a) the requirement for every deed or conveyance to be signed and acknowledged by the grantee, or the grantee's authorized agent; and
 - b) the prohibition on a deed or conveyance from being without the grantee's signature, or the grantee's authorized agent's signature.
2. Makes technical and conforming changes

MESNARD FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1254
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 33-401, Arizona Revised Statutes, is amended to
3 read:

4 33-401. Formal requirements of conveyance; writing;
5 subscription; delivery; acknowledgment; defects;
6 form

7 A. ~~No~~ AN estate of inheritance, freehold, or for a term of more
8 than one year, in lands or tenements, shall NOT be conveyed unless the
9 conveyance is by an instrument in writing, subscribed and delivered by the
10 party disposing of the estate, or by ~~his~~ THE PARTY'S agent thereunto
11 authorized by writing.

12 B. Every deed or conveyance of real property must be [:_
13 1.] Signed by the grantor AND THE GRANTEE OR THE GRANTEE'S
14 AUTHORIZED AGENT [and must be] [_, EXCEPT THAT ONLY THE GRANTOR'S SIGNATURE
15 IS REQUIRED FOR ANY DEED OR CONVEYANCE THAT IS SUBMITTED FOR RECORDING BY
16 A PERSON WHO IS LICENSED BY THE DEPARTMENT OF INSURANCE AND FINANCIAL
17 INSTITUTIONS AS A TITLE INSURER, A TITLE INSURANCE AGENT OR AN ESCROW
18 AGENT.

19 2.] Duly acknowledged before some officer authorized to take
20 acknowledgments as prescribed in title 41, chapter 2, article 1.

21 C. In every deed or conveyance of real property in which the
22 grantee is subject to regulation pursuant to title 6, 10 or 29, or would
23 be subject to regulation pursuant to title 6, 10 or 29 if doing business
24 in this state, the grantee's name and address and the state in which the
25 grantee is incorporated, organized, licensed, chartered or registered
26 shall be set forth fully, together with the name of the country under
27 which the grantee is chartered or formed. The validity of any deed shall
28 not be affected by any failure to comply with the requirements set forth
29 in this subsection.

1 D. For the purposes of this section, a deed or conveyance that
2 contains any defect, omission or informality in the certificate of
3 acknowledgment, or for which there is any failure to perform a duty or
4 meet a requirement in the taking of the acknowledgment, and that has been
5 recorded in the office of the county recorder of the county in which the
6 property is located ~~shall be~~ IS deemed to have been duly acknowledged on
7 and after the date of its recording.

8 E. A DEED OR CONVEYANCE SHALL NOT BE ACCEPTED ~~[FOR RECORDATION]~~
9 UNLESS THE GRANTEE'S ACCEPTANCE OF THE CONVEYANCE IS EVIDENCED BY THE
10 SIGNATURE OF THE GRANTEE OR THE GRANTEE'S AUTHORIZED AGENT, IF AUTHORIZED
11 IN WRITING, ON THE INSTRUMENT OR BY A CERTIFICATE OR RESOLUTION OF
12 ACCEPTANCE ATTACHED TO OR PRINTED ON THE DEED OR CONVEYANCE. IF A
13 CERTIFICATE OR RESOLUTION OF ACCEPTANCE IS USED, IT MAY BE IN
14 SUBSTANTIALLY THE FOLLOWING FORM:

15 THIS IS TO CERTIFY THAT THE INTEREST IN REAL PROPERTY
16 CONVEYED BY THE DEED OR CONVEYANCE TO (NAME OF GRANTEE) IS
17 ACCEPTED AND THE GRANTEE CONSENTS TO THE RECORDING OF THE DEED
18 OR CONVEYANCE.

19 DATED: _____

20 AUTHORIZED SIGNATORY FOR GRANTEE: _____

21 [F. SUBSECTION E OF THIS SECTION DOES NOT APPLY TO A DEED OR
22 CONVEYANCE THAT IS SUBMITTED BY A PERSON WHO IS LICENSED BY THE DEPARTMENT
23 OF INSURANCE AND FINANCIAL INSTITUTIONS AS A TITLE INSURER, A TITLE
24 INSURANCE AGENT OR AN ESCROW AGENT.]

25 Enroll and engross to conform

26 Amend title to conform

J.D. MESNARD

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11:42 AM

C: MR

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